

25VECV03851 25VECV03851

County: los-angeles

Division: Civil Law and Motion

Department: NWI

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Case Number: 25VECV03851 Hearing Date: August 4, 2026 Dept: NWI

25VECV03851 Anika McFall v. Deluxe

Transportation & Livery, LLC, et al.

August 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion to Compel

Discovery

I.

Background

On July 10, 2025, Plaintiff Anika McFall ("Plaintiff") filed a complaint against Deluxe Transportation & Livery, LLC ("Defendant") and Does 1 to 10 alleging motor vehicle negligence.

On November 3, 2025, Plaintiff filed her first amended complaint ("FAC") alleging three causes of action: (1) negligence; (2) negligent entrustment; and (3) violation of vehicle codes.

On May 18, 2026, Defendant filed the instant motion to compel Plaintiff's responses to Request for Production of Documents, Set One.

To date, the motion remains unopposed.

II. Discussion

A.

Legal Standard

If a party to whom inspection

demands is directed fails to serve a timely response, the propounding party may move for an order to compel responses without objections. (Code Civ. Proc., § 2031.300(b).)

Failure to timely serve responses waives objections to the requests. (Code Civ.

Proc., § 2031.300(a).) A party moving to compel discovery responses under this

statutory provision is not required to meet and confer prior to filing the

motion. (See Code Civ. Proc., § 2031.300(b); see also *Sinaiko Healthcare Consulting,*

Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 411

[citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 906 for the

proposition that “meet and confer” requirement “did not apply when propounding

party sought order compelling responses to interrogatories and sanctions for

responding party’s failure to respond ‘within the statutorily permitted

time”].) ¶¶

If the court finds that a party has unsuccessfully made

or opposed a motion to compel responses, the court “shall impose a monetary

sanction . . . unless it finds that the one subject to the sanction acted with

substantial justification or that other circumstances make the imposition of

the sanction unjust.” (Code Civ. Proc., § 2031.300(c).)

B.

Analysis

Defendant served the discovery request on Plaintiff on

November 17, 2025. (Cotter Decl., ¶ 5, Exh. A.) Defendant provided Plaintiff

with various extensions to respond until May 8, 2026. (Id., at ¶¶ 6-11,

Exh. B.) Ultimately, upon filing this motion, Plaintiff had not served her

responses. (Id., at ¶ 11.) Accordingly, Defendant’s motion is granted.

Defendant requests sanctions in the total amount of \$952.50:

1.5 hours for meet and confer efforts and motion drafting, an anticipated 2

hours for drafting a reply and appearing at the hearing, and \$60 in filing

fees. (Id., at ¶

12.) Counsel bills at a rate of \$255/hour. (Ibid.) While the Court finds

the hourly rate to be reasonable, the requested amount is excessive because the

motion remains unopposed. Thus, the Court grants sanctions in the reduced

amount of \$442.50 (or 1.5 hours of attorney work at a rate of \$255/hour plus

the filing fee.)

III.

Conclusion

Defendant's motion is GRANTED. Plaintiff is to serve Defendant with substantive, code-compliant objection-free responses to Defendant's first set of Requests for Production of Documents, within fifteen (15) days of this order.

Additionally, Plaintiff and her counsel, jointly and severally, are to pay defense counsel sanctions in the amount of \$442.50 within fifteen days of this hearing.

Moving party to give notice.